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|    |                                                  | <p>rather than 1. Thus, Defendant’s request to tax the court reporter fees is denied.</p> <p><u>Models, Enlargements, and Photocopies of Exhibits</u></p> <p>The two trial binders for counsel were reasonably helpful to aid the trier of fact by allowing counsel to conduct its case in an organized fashion. Thus, the Court taxes the \$339.72 withdraw in opposition and denies any other request to tax.</p> <p><u>Other</u></p> <p>Plaintiff’s messenger fees to transport exhibits to and from the courthouse are merely convenient rather than reasonably necessary to the conduct of litigation. Thus, the Court taxes \$624.50 for the claimed messenger fees.</p> <p>Plaintiff’s observer at the defense medical examination observer is reasonably necessary to allow Plaintiff to properly defend the findings of the examination. Thus, the Court denies the request to tax this cost.</p> <p>The Court taxes the \$556.56 for a charge “CVB (AMEX) – Fairmont Breakers, Long Beach CA – C. Bulone — trial-related lodging.” There is no other explanation for the charge and trial was not conducted in Long Beach.</p> <p>Finally, Defendant seeks to tax half of the \$12,161.25 for the trial technological support services. Defendant claims the parties agreed to split the costs and Plaintiff has not submitted evidence the invoice only reflects half of the costs. “[T]he losing party has the burden to present evidence and prove that the claimed costs are not recoverable.” (<i>Seever v. Copley Press, Inc.</i> (2006) 141 Cal.App.4th 1550, 1557.) Defendant fails to demonstrate the claimed costs are the entire cost of the services. Thus, the Court denies the request to tax this cost.</p> |
| 7. | <b>REVNUE CORP. VS. CORTEZ<br/>2025-01531657</b> | <p><b>DEMURRER TO COMPLAINT</b></p> <p>Defendants John Cortez; Think Scale, LLC; and Bundee Technologies, Inc.; and Cindy Wu’s Demurrer to the Complaint is OVERRULED in part as to the 1st-3rd causes of action and SUSTAINED in part as to the 4th cause of action.</p> <p>Defendants’ request for judicial notice is granted.</p> <p>The Court exercises its discretion to consider the untimely reply.</p> <p>The rule of exclusive concurrent jurisdiction applies where two or more actions involve the same subject matter and the court in the first action has the power to grant complete relief. (<i>Plant Insulation Co. v. Fibreboard Corp.</i> (1990) 224 Cal.App.3d 781, 788-789.)</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |

“Under this doctrine, when two or more courts have subject matter jurisdiction over a dispute, the court that first asserts jurisdiction assumes it to the exclusion of the others.” (*Shaw v. Superior Court of Contra Costa County* (2022) 78 Cal.App.5th 245, 255.) “Under the rule of exclusive concurrent jurisdiction, when two California superior courts have concurrent jurisdiction over the subject matter and all parties involved in litigation, the first to assume jurisdiction has exclusive and continuing jurisdiction over the subject matter and all parties involved until such time as all necessarily related matters have been resolved. The rule is based upon the public policies of avoiding conflicts that might arise between courts if they were free to make contradictory decisions or awards relating to the same controversy, and preventing vexatious litigation and multiplicity of suits.” (*People ex rel. Garamendi v. American Autoplan, Inc.* (1993) 20 Cal.App.4th 760, 769-770.)

In the Alameda action, Reina IP Holdings, LLC and Premier Trust are suing Revnue, Sharma, and Cortez for fraud, breach of contract, breach of fiduciary duties, and conspiracy related to his \$3,000,000 investments in Revnue. He claims Cortez and Sharma failed to properly grow Revnue and had induced him to invest without any intention of obtaining additional investments, customers, or growing Plaintiffs’ investments. (RJN, Ex. B, ¶¶ 13-27.) Thus, the claims relate to Revnue, Sharma, and Cortez’s handling of Reina and Premier’s investments and their duties to the investment companies as investors.

This action relates to Revnue’s claims against Cortez and his affiliated entities for breach of fiduciary duty, fraud, and attorney’s fees related to the Alameda action.

As to the 1st-3rd causes of action, Plaintiff claims Cortez used Revnue funds to pay for a family trip to the Philippines (Compl., ¶ 16), set up a Philippines subsidiary and internship to divert funds from Revnue (Compl., ¶¶ 18-20), added family members to Revnue’s payroll to further divert Revnue’s funds (Compl., ¶¶ 21-23), and misrepresented to Sharma Revnue’s financial status (Compl., ¶¶ 23-25.) While some evidence will inevitably be shared between the two cases, they address fundamentally different wrongs. The Alameda action addresses Revnue, Sharma, and Cortez’s duties to Reina and Premier while this action addresses Cortez’s duties to Revnue.

Plaintiff’s 4th cause of action does create a significant risk of conflicting rulings. Plaintiff seeks to recover attorney’s fees incurred as a result of having to defend the Alameda action due to Cortez’s alleged wrongful conduct. Whether or not Plaintiff is entitled to such relief would require a determination from the Alameda court regarding whether Cortez engaged in any wrongful conduct as to

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|    |                                            | Reina and Premier. Thus, this cause of action is stayed as the issue is within the Alameda court’s exclusive jurisdiction.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 9. | <b>NGUYEN VS. NGUYEN<br/>2026-01560555</b> | <p><b>DEMURRER TO COMPLAINT</b></p> <p>Defendants Lavie Tue Nguyen, Vincent Nguyern, VSCosmetics Corporation, Lavie Home Shopping LLC, and Lavie Home Shopping Corporation’s Demurrer to Plaintiff Nhat Alexander Nguyen’s Complaint is <b>OVERRULED</b> in part and <b>SUSTAINED</b> in part with 20 days leave to amend.</p> <p><u>Timeliness of Opposition</u></p> <p>Defendants’ note Plaintiff’s opposition was untimely as it was served on 8/28/26, but due on 8/25/26 pursuant to Code of Civil Procedure section 1005, subdivision (b).</p> <p>The court has discretion to accept or reject late-filed or served papers. (<i>See Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker</i> (2016) 2 Cal.App.5th 252, 262 [citing to Cal. Rules of Court, rule 3.1300, subd. (d); <i>Bozzi v. Nordstrom, Inc.</i> (2010) 186 Cal.App.4th 755, 765 [citations omitted].)</p> <p>As Defendants have filed a reply addressing the merits of the opposition and do not contend to be prejudiced by its untimely service, the Court considers the late-filed opposition. In the future, the Court may decline to consider documents not filed and served in compliance with Code of Civil Procedure section 1005, subdivision (b).</p> <p><u>Direct versus Derivative Action</u></p> <p>Defendants contend Plaintiff’s complaint is defective as “Plaintiff’s allegations repeatedly concern depletion of LLC funds, misuse of LLC inventory, and reduction of LLC enterprise value.” (Dem. at 6:11-12) and Plaintiff has not properly pled a derivative action.</p> <p>Plaintiff contends his “injury is personal, out-of-pocket, and distinct from any injury to the entity.” (Opp. at 8:1.)</p> <p>“An action is deemed derivative ‘if the gravamen of the complaint is injury to the corporation, or to the whole body of its stock and property without any severance or distribution among individual holders, or it seeks to recover assets for the corporation or to prevent the dissipation of its assets.’ When a derivative action is successful, the corporation is the only party that benefits from any recovery; the shareholders derive no benefit ‘except the indirect benefit resulting</p> |